

K H Ganesh Rao vs H Gopal on 6 October, 2009

Equivalent citations: 2010 CRI. L. J. 2687, 2010 (2) AIR KANT HCR 455 (2010) 2 KCCR 1414, (2010) 2 KCCR 1414

IN THE HIGH COURT OF KARNATAKA AT BANGALORE
DATED THIS THE 61st DAY OF OCTOBER 2009

BEFORE

HONBLE MR. JUSTICE ARALE

CRIMINAL APPEAL 73 OF
BETWEEN: A

K.H. Ganesh Rao

S/O K.K. Maheshwarappa . _

Age: Major OCCZ Business

R/O Haiiyooru Aryerakeri

Shikaripura town ;
TaIukaShIkarj.pura 1
District Shi:.11«9.ga- _ _ , Appeilant

my fleas. ,)
AND A A A A

H. Cropal , ~ -
Sv;"é)_ Hu»;*}1a.pp"a-A E3h_f1fidaI'i

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2 ' ,VR'/.0 CT§_Vi1"c)1*a.1del:_al{eri

A w Sh il{a.15i;31L:rei:~ town
"Taiuk S}iika;1ripL1ra

District.'Sh*im0ga Respondent

'{--Respr:mdent absent} Criminal Appeai filed 11/8. 378 (4) <:r.p.<:. praying ' Vfto aside the order dated Y/1.2009 passed by the " --7Sessim'is Judge 1 Fast Track Court. Shimoga in Cr1.A. No.1 E 1/ 2006. ':he1"e.by allowing the appeal and setting aside i□he order of ecmvi(':f:,icn': and sentence dated 6.10.2006 in CC. No.308/2005 passed by the Civil Judge {:}I'.1.)1'}} 2:111d Ji\|EFCE. Shika1rip1.3ra. mwww Cr1.A. No.173/2009 Coming on for dictating the order, this day, the court delivered the following:

Aplnellate Court mainlaillable under Se(".378[4) of Cr.P.C.

Indian Kanoon - <http://indiankanoon.org/doc/298306/>

378 Cr.P.C which provides for an appeal against an order of acquittal reads as follows: "378. Appeal in case of acquittal (1).-An appeal against an order of acquittal passed by a Magistrate in a case in which the offence is punishable with imprisonment for a term not exceeding three years, or with a fine not exceeding five hundred rupees, or with both, may be preferred by the accused or by his legal representative or by any person who has been authorised in this behalf by the Magistrate in writing." (2).-An appeal against an order of acquittal passed by a Magistrate in a case in which the offence is punishable with imprisonment for a term exceeding three years, or with a fine exceeding five hundred rupees, or with both, may be preferred by the accused or by his legal representative or by any person who has been authorised in this behalf by the Magistrate in writing.

(a) In any case, an appeal against an order of acquittal passed by a Magistrate in a case in which the offence is punishable with imprisonment for a term exceeding three years, or with a fine exceeding five hundred rupees, or with both, may be preferred by the accused or by his legal representative or by any person who has been authorised in this behalf by the Magistrate in writing.

(b) may, in any case, an appeal against an order of acquittal passed by a Magistrate in a case in which the offence is punishable with imprisonment for a term exceeding three years, or with a fine exceeding five hundred rupees, or with both, may be preferred by the accused or by his legal representative or by any person who has been authorised in this behalf by the Magistrate in writing.

of acquittal passed by a Magistrate in a case in which the offence is punishable with imprisonment for a term exceeding three years, or with a fine exceeding five hundred rupees, or with both, may be preferred by the accused or by his legal representative or by any person who has been authorised in this behalf by the Magistrate in writing.

(b) In any case, an appeal against an order of acquittal passed by a Magistrate in a case in which the offence is punishable with imprisonment for a term exceeding three years, or with a fine exceeding five hundred rupees, or with both, may be preferred by the accused or by his legal representative or by any person who has been authorised in this behalf by the Magistrate in writing.

1 or sub-section (2) shall be subject to the leave of the High Court.

{4} If such an order of acquittal is passed in any case instituted upon complaint and the High Court, on an application made to it by the complainant in this behalf, grants special leave to appeal from the order of acquittal, the 'V. .

complainant may present an appeal to the High Court.

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(5) No application under sub-section (4) for the grant of special leave to appeal from an order of acquittal shall be entertained by the High Court after the expiry of six months from the date of that order. (6) If, in any case, an application for special leave to appeal from an order of acquittal is refused, no application for special leave to appeal from an order of acquittal shall be entertained by the High Court after the expiry of six months from the date of that order.

acquittal shall lie "u:'1};t1_er' :-3_i,.1Vt3.\$"s.e<\$t;i_(\$i:2"["i_} or under subsection (2)'. 'J:i:s.;i,= c;u~éfi{,;:1 reading of the Order of Co- ' Aoi"dii1a.""i1r.r T3.e:ri(I11<veiwieihis C()ur'r. in CrI.A. No.14-2/2009 it s::e.;i1 that the 1ea1"1'1ed Single Judge has O}Li.S€1""V('?'{iv":':~"l'1A. the said order that": the words 'original or .Aqppelia:z':'e order" which are found in C1 (b) of sub Sec. [1] A' "def Sec. 378 Cr.P.C do not find their place in sub Sec. (4)

- "of it anti Th.€:'1"Cf(')1'€. it eaniiei, be held that an appeal lies to the 1~1i<;>;1'i Cioiirt Ei\$;'c1il'1S\$T an order of acquifsal passed by {he e'ipp<>1\$:»;i\$c=' (3m,zi'1". Ii" em.1}.d be seen further from €:...,_§""""""")»-M"-x____,m....

any Central Act other than this Code. an appeal lies: [a] to the Court of Session from an order of acquittal passed by a Magistrate in respect. of a (iOgI1ZH,.b'l-'3'>E1'I1d non bailable offence and (b) to the High 'original or appellate' order of an Jqequit'tc_1i" "

Court other than a High Court.

10. Thus. it is C1ear_ 'from the pro'a%_isio'iismo--i" sub□ sections {1} (b) and (2) (b) o_f____S'e.<_:_.;3_78 t.hat,§1iAvvi9;1ppeal is provided from an Ordél,ibf.2i'c.qji;iif;t'eilVipéiseed by any Court other than the_rHi____gh either original or respect of the case instituted on sub section (4) of Sec.378 providers'; for appeal against order of acquittal in » case instituted upon complaint. Though . Joriginal or appellate order of an acquittal"

arelnotiueed in sub section (4) of SeC.378, the words A touch an order of ac?qu.1't£al" which are used in sub Ejection [2] of Sec.378 are used in it [i.e., in S.378(«1l)].

11. As to the meaning of the words 'such an order Q/'acquittal' which are found in SE.1b~S@('l'.iO1'1S {2} 81 (4) of gmgrww 42,-

Sec.3'78, the learned advocates for the appellants in the present appeals have placed reliance on the decision of this Court. in the ease of Chairman, Village Panchaijat. Nagathihalli vs N Thimmashetty Gowda reportiedl' . I956 MYSORE 62{C)_wherein it is laid doxvn' as" , "[c] Criminal p.c. (1898), 4S...{l"l._7 (2) (3) ' (as amended by Act 26-v_vl4lo'f_>195V5)._ 4 -TfpS"i____1ch:"Van order of acquittalf" -- SL1b:secti'o.n (3) applies to order of acquittal«. _z"pass_ed;Vj_ 'hy*=.app~ellate Court also.

l5a_ra contended by the learn'e.dllcVo1;1"nsell. petitioner that S. 417

413) applies Vjonlly to original orders of acquittal not to of acquittal passed by an " "--CoL1rt. I see no merit in this ll Section 417 (1) runs thus:

"Subject to the provisions of sub s. (5), it State Government may. in any case. direct "the Public ProsecuI'or to present an appeal to the High Court from an original or appellate order of acquittal passed by any Court other than a High Court."

rm~fm 111 sub (2) and (3) of S. 417 the word "such" is used with mferetice to an order of a(q1..iit.ta.}. The words "such an order of ac:quit1:.a1" appeariiig in sub (3) can only refer to the order of acquittial 1116:-11tior1€:,(i.VVii:::1"i._V_ sub (1) of S. 41.7. The order of refm-1-pd to in sub {1} of S. 417 is an'~«.(j'rdeir.VOfM T " acqi.:iit.i;a1 of the origins} or 'T11é31'<r£1,)1f(;? there is no fo1v"e fill' '«

8.d\,*g,1.l1CEQ~Q1 by the ie;1r1'1c3__(i ccimsei it (3) is applicable only i_r_1""*.x"ri*ii(V\$[i] order of zicquitgfai is t&}_1a"t,--..t\$féiii._origih'al C:C)L11"t. Under these _'r:ias_Vto be held tvhteti --. _ : 'gi:hiVsfi.; '1"f}?>\}'i-810111'. ' 'petittion is not iI.1E?iiI1'1'i:!.i1:'1€:"f)}□"._ .' I-?u_1ft'.i*1__c:ti'.V g' 't..}=i'c lc~2ii'11€d advocates for the 1'1zi\9@.' reic(:1 1: _p(>1"1. i'.}i:€ decision of Gujarat V 'High "C2g5u.,r't _iV1""ivi'.E'1¢:*. case of Mahammadmiya Kalumiya vs. .1v:r\$ijioz1gh:~Lé__ bizdarkhan and another reported in 1972 CrI.I.;J°:.1409 ¥'Jh&'E'{'tiI} the dc;c_:is3'or1 of this Court in the 'Cash: 01' ('.:}')1ai1'ir12'»111, V 11121,-:-gt? P2211":(:hay2>:t., Nagathi haili vs N __'?'1'him1'i'i;;a SI1L.'fi'E.y (')()\x.f(:\$e:1 1"c.t'e1"i* <3é(i 10 supra has been followed 1.)); \$wlig2;1'1 C()E.11"1'. of G11wj2iI'E:1E.. It is observed by the <'--'*\$%y"\'''''' 5;-:pc'e1'io('i in tliai. se('ion. Ariotiher class is C')1..1r£.s of Magisi1'e.1.i_<rs. IE. the court of Sessirms w}"1i(_:1'1 wouci cxe1'eis<'-? powers in case of a ("()1'1Vi()ii())1 by a M2.1g'isi.1"at.e where sente□te a\,v211'dec1 is appealable and in ex_ercisir1'g«.. 'sh.g3se. p(□)\v<:1r'r_~:. 1"1'1e Sessions Co1.11'i' does not eJeaseV:"t() ' :;>e--.i 21 (: "<:mri. 'i'11ereE"or<:, e\»'er1V-'dhfihe;ir1terpreta'tiGr1i"

21dV&1n("('?'d by Mr.S}'1.e1e1i: iii' thali c:(On1p}e'1i1'1(mi: sho:.,11d'V 1?..1_e_i.Ve': filed' ;?gC.qiii'_r}tai appea}. 2.1\$ _\$di1'1s€': the K{.{<:r}L:11.iiiai}V""~<_mr'Cie'r the Sessr'_(.)1_ '1s Courii.' .<% '1ezi'r.:iiiiieit,'the x□fdrds "such an orcier of a<':ci4i:itr;r\$;;.i .: in sub--section {3} rrirfvr _{1:.>_ an ,orciei{ rneritioned in sI_a""x'i7 --SA<*tj';1;i<,)i'if.; {-1}""-Whi('Iti'1A""(i)i'{'ii'E%I' of acruittal would i.._nc.*i1:.(;1<.-:= ' "Vc>ifig\$fr1i;i41""*.355'-. weil as appellate order of 21(:\$c\$1.1'iiii'.21}.'.='E'i't.er,e'i'carL*,V just as the State has been

--.g.i\»*c'»:" : "-:_i : 'éVgii1: cu)?" 2.1}')]:')ee'tI fr'r')n1 an original or 'cf.}i)p¢3_l\$2"1it*H(i)"-Sim' of e:rr(:;n.iii:'a\$_. in 2:1 given case a p_rr»s':2a1'iV<'\$*pariy has also been g\$ive1'1 a right to « éi}i)'□Y;.'1i'~:i'I'i)11} ihe same kinci of order of acquittal. Ti"1'(''.V(ii"i]Iv\~' 1i_r'n_it.aE:i.L:)1'1 pE2=-teed by the Legislature on 1"ig1'a:.. ('.()I1f(''.TfE.('1 u;:)o1'1 the private party in SLI('J'1. a vase is die IE.mita1,ir_)1'a in the form of sp(t("i:=x} ic==a.:we to be r>1:3£"a_i.r.'1c'><i in appealing against tlu-X {'31-(Tier of ac.(':11_:i.2'131.}. Ejxcrepl this lirnitationi there is no ot'};"1e.r ('\$i5~;ii11('i1')1'I 1:)eiwee1'i the right (□)i";.:.\$>1"3<'*z'ii (":o21f'c2rre(*\$. {"231 UIL' Si'21i".c>. and the right of am.)r.%e_f:1 m:"i1'err:(*(i \$i}')(")E} z1 p1.'i're;1te party in %%M□specified i\ir.S1iciat's content.ioI1__, if acte<-;:;pt.c:é(i1. would an1m..u1i: to piacing a sc(;~or1!:1 l'(_'.SiI'i('Li')1] upon the 1'igl'if: ofappea.1 corifcrrc.d_"b3;_ Seci"io11 4E7[€-3} which not justiii'c-ro1 xi't1--'i1c M 1211'1g1.12;1gc used in Stib-SC('ti<O1'1'-(3) 'rcad vvi.th ".<,u1i;>- '< sc(3iion:s (I) and (2). I1 "tj11eir'(:forc'ii»r1ot_?po'S\$ib1ié?Z:

ra.-g .

to £1\$ {1'€%€.* with the :511!;)m.issioiii_of Mr..':3n___c1:\$1t tiriiati the woms such an riicciéircif acécitiittal-I occurring in sui.3~.s.:c('ri.ior1V {£3}. i'ei}:.2i'''to...iiiiir-order' 'or acquittal passed by the "t'r'it_.1iA 'EI3_oi:iV1:%t These Words refer io :..1'": orcl-e-:1*v» .oi=" é=i<';q_uit.t.:;1laxpaissed by any court ("{i.l'1«-* V" 'a3vI4ii;_§ii' CoLi"*E:-----c-'iihcr in exercise of <'i;ig;'i:.i'é.;:E i.i';rise'i'i€j:'1«ion.O1' ";jip'})e1atc jurisdiction. 'l'i"r:"i';~;..x_x.-*2';-:..»' 1.1%: =vi(a:w"t.2-11\$:-§i'i"%;33? a Single Judge of the VMySo1'<?. ' in Chairman, Village Pan;¥:'-~r;;;Em.1i 'uFi-'.:_irrirz'1as(?i ty. AIR 1956 Mys 62.

-- flI"i-'1a~r<4':..z._ies<iu~%:'i ~..-1"-e-;;:1'i.-w i11s11'tu{(r(:l U.P()I'E a. com}3Iair1t t;_l-'_3_c1rt% M153"r;_it;;mri(_?i()11 by 1.1'tt'" trial Court and £'3,§'V('jli'H.'i'i':iE.' by 1.11:: zi]:>;.)<:late Court. The A c'(r:V£_1_vp_1ai"1'1'éz1'"ai. \--K-(':.I.'11'I in l."€"ViSiOiIi to the High Court

21.__ic'1("E.-ii. we=1\$ held that the rcvisioiiai application not compcimii, 'i"E'1<.= word "such" in sub» s(>.:%1'i:ms:, {2} amd {3} of Scci:ion -417. was, it was ()i,>s~m"v:>;<'i. i,;.~s-c:~ci wii.i'1 r'=(icrc11cc> to an order of a(tq1ii1_i;1_]. .rc:*Ic1":('r('i it': in .*~;1.1i.3~.=%c(*I"i()I"1 (1) of Section 4&7. It xms ()1)s<"n»-'r'.<.'1 I'i.1:'1.i. tl"1c order of acquittal .1'(:f<;:___=i'1'c-xi to in :_~;1.i'.w<;vc:*tfor}. {1} was an order of £1("€j1l\$.Héi\$ oi the c'uz'i;jg;§:'1;-1} or tho 21ppc]_l2ii,c Court.

c'''~--v-{'/'~"Amww\----->m~ Thercfoi-e, the eoni;ent'ion that subsection (3) of Se('.'E"i(..>;: 417 ap}_3Eic.:a}_31<:2 timiy to a case in vw'h_iCh the o1"de1' Of'c1'(.]L.1iU,2.i} is passecl by the....(ji*igi11'a\$V" em1_:'1_ W'E.1S iieegativecrl. With respec-if _"thezfei-'is. H e-11m.1g,_§i'1 i1"1di(:ation in tI1_e..»}.aI1gL_1€ige"vfjyf SC-)({'i()}\S (1). (2) arid (3) <)i':.,1Sect:iQ:n 41?' with this view. i\i1'.S\$'1e1211 in the cou"rs.e' of hie"

SL1b1'1']iSSio.i"1 drew my 21'i'r.feé.iriti(311 i-<) tw\$)'_ = one of the AHa;hé:1.b'clCZ1A,-'Hi-£§}'1 °CZ_c)1.1rt'"reporied as Abchzi E~i2:11im V; "iii;-i1,_(:'--_ 222. That was 2-1. (ranger WhAi(I).],;._};'IV&iL.iV.. on a police report 2 § 1': i 1; (j 1; 1 " r i e i " 2 _ > 1 _ T " V ' - e > n ; 1 ; i l a i n t a n d t h e IV[c}\$; ;i€5*S4:{v.1";;;1"E'5,(?."Ci'L)E"3V'i\$7'f-DEC "':_i'1"e.: .a(c_r.used who was ac*c';'1v:..itA1"e{I =tEf1"e_a.p;;eI'E'2=:E--e:" Court. A revisionai \$431.)-iii'21i':iE; ;i'i"-jV;i.e4"i£'i:1é:*'1 ":30 the High Court. It is ob\.=.i_<_i1.1s f,'\$'.1é1fiT' ij_Ei£::--. £52:-isc-:r was not Covered by

-Scce_.*i.i(:>'1:._«a1'\$V7"i3)."-z:'1\$" it was not 2-1 case iristituted V L: _p_m2_ 2-1 miip~'.~:~=:iii£.. "I'E3<e: <)i_he.r cittctision was of the C3.fLi:})I';L<%\$.%}{(?...{:()1H'1 i'epo1'I'ec:i 2155 Chinnaswamy V. S'tia:ei"%_.*vg;x_<.1i.;"z3i_'i'1{i'1}1re. Pi'2;1(:;ies1'1. AI R 1962 SC 1788.' in t'3:___1'e'i'i'.,(*i2:sct also the :mat,E.er originated on police "ir;___i.?c-2:31i; ;z.1tioi'i

and 1101. upmi 21 private complaint. In. I"lf\$'i'E'EE-'T' of i__ft1c;:.<se 1.2,».-Fc) eases the question \"«é'}1{'?i'IE'1t''T' the 1'i.g\$K'1E' {>'§''' e;11'3;e)eai Cmiferred by sub :+s<5;%(:'i'''i<.:=:''1 {\$3} c':>i:'' S;('Tf,i{ })1 ii-E7 is limited to acquittai by the ()I"i\$ _{i1'1&i1 ('(>11r£_ {>A1'1Iy had arisen for {i{'i.i'i'i'T'i\$ i\$:i[i()\$'1, I") {f('E112.'-§(' in 1'1.(")j\$C" of the two CELEBS Llw a: "%,a_£1':e.:§ <.'2m= w2:s-; i:i:s:"\$i'11%"<"».(i upon a private ,,,,,""--m-~».»-

L?) Co111}_{_})l;:i_z'1_'. 'i'1"m'<~i'(_)s'c. t_1'1csc~> tvvo decisions____ do 1'10! lufip
M1'.Sht'[_>I;:1t.

1.3. (.):"1 ('dl'('.[1E 1'c>e;;:ci%11\$;gj of the Ofdéi' ordinaltc'. i%(-nT1('h of this CoL:z'E :'\$1'1~.C3r17_□. which is 1-^{*}ci<>d upon by :m.- 1&1-a1"1"1éC1 nituinsel £126; I'€SpOI1CE\$\\H\;-1(T(_'1.£S€;TCi in (RE;A~v..v;51().9C5/2.908 v'itmCOLi1d be' seen them {t'('):.1;:'h 1.110. 211J:~;<= *1'1L:v _"oI" "L1j1e w(jrds~"Originai or appellate (_")rc1'.er Qf cifi ;,t1€"cjLa:z.z:%{;:1.I section {4} of Sec.378 11:15; «i'}gf(L:_~n :f1\$g)t:i(;+e@)' l3:.g 1v}'1fcu}é2\$R};1ed Single Judge, in the .g«s2'£fi<T} ;_i':=r.,i:*1}';-.._ 1',r14'€~_{'}.r3j1 L.*;~..s□zig o1' the words 'such an ordef of □\$:It::;..t,z'.{mill? \ra}'ifé:.é_i"1 e-'ms found in sub sections {2} and {4}uz'j' S(f'c.y._f%?'TE% '1:'1';s.1_ ;¥:" «:"r"<>t been (rondiderecl. Besides this;~~1-1-- E"-3 (ix:-^{*}<:V:.i5ir'2:"j oi thisa ('.mrrr" in the Case of Chairman E31-'-%"2I]_('}'I2.i\,-'Eli,. é\la;:_3je'.1i1T1i1T}:1Eii vs N Thimma Shetty :G'c_ ;vuf<:}:_vi MYS 62} r'e'rfc:érre<='>("} to sup1'a was not bfoug.}'i' _ Mi Hw 1mi'i<'<'1'<':> of she it?a1'r1t'.('I Single Judge when V nthuis \}*(>_s_}jv* ('\$L..I.('"f£I'.i€))'1 as to m2-1i\$;"11;:2'=1i.:12=tbility of an appeal "' .f1")m an :>'r<"\$:==r" of :2:<';;z.:ili;1i pe2'1:5s<:><'i in appeal was ' " C()I1Sid('?'})"('f\$ a .\$.='\$. '3'i'w ;:-:}')m.--<~ <.:%:;é:«;<;.=*x-';;;;i'i<> ;'1:¢:; wc1'(:~ made by the ieartuird -E-%\$z;:3;E_<> »}:.z<\$____;_{'' <3?' ?E"2\$~; (3m.s1'z in 1;hc (.?i:1-SE'. of L7 Chairmcm. \~'z'Hc'.L'(;c? Pcu'zc*I'2aycI.{.. Nczgczihillalli us N Thimma Shelly ("")oz:rc1o \vE'aiELf (."O)1"1Si(IC1'i1'1\$.{ the provisions of 8630.417 (1) 2.-mcs1 {3} of €j,' ,r.P.('3 1898 {old Code) are identicfsi with Ij}'I('.: .];)rovisi<..ms of sub sections□L).\$ir\$d {4} of C'r.P.(i. 1\$37'. '3 [1}'<.*w (j?<>do).

L5' I 1'<'3s;_)<-t<*1;f1.1Hy £;'if..{.I'(-%(-.": with' 'fglléi V/iiew the lezzmwrl
E,_>'i1";g'icrs Ju(oigg<\:o_f t'l":is*~A(i'c>13rt' si.1i--l cé;sé" of□ChC1iI'fTICJ'J'?.
'-."Ilr.zge Pan(3IayoiVi;a.:Na;ga£foi'iaolii'vbs Thimma Shetty Ci)c_m.=(1.a (AIR
'_vAMysorg_v.62.])_which has been followecil by ¥}'1\$?_ Hi;_{1'T'_.C.(,§.1i~1T1.
'Vin 1972 C1'l.L.J 14091;...}')ri)I"E"; . V19{v%:z""(}'1:1,f4€s'(.3 4R3: 's-1.1j)i';L if the
words 'such an order Q}"s.;oi.é::;ziiEt2a?.§_ ' 2;;11'C fmmd in both the sub--
se>::i*::jc:)a'i';s {Li} 63¢":{"r:"\$s}v____({_f.bécv::§7E__'. arc' hld to mean an order
' ..ac:s--:1p;1.éoi':':sf"Vpa1.ss<':ci_ in <1x<~.1'{'_isc~. of 'either' original or
.i3J,I3'}5E3U.C1':'.r_-3:'ffi}'is*€(1i('Iiri)I'l'. 11' f<>11cs\.=.»'s:_a that ord-er of
acquittal passe?('i'«})y <_rit':::}'1s31" *£'.i"1<==~ 'E'ri;:1I C__'.o:.__1r'1. or \$1.116
Appellate Court cafi~«_bo ;_-2;_2g'::s;_>;=-:E:--r<i ;.1g2.1i.;1sI' E3}:
§1'2\r<:>k'ir1g provisions of sub % s<:*cti<'m {;13 of sm~.;a7s C__?:.I'.<f.". 1.6

'?':<* deñition :1? 'Criminal Appeal' has been rei'er1'<,:~(E is and :_>:'3si{'1a'>;o'a-xE 1);: 111:: (ic')--o1"c.i13'1ate Bench of ,.....r--~w»« this Coimz in 'aim <..>:*{.E:'-*1" 1'1"; C__T.;'I.A N().142/2009 referred to supra. ('m ('am-r'i"i.11 1'c'a<'i1i'}g;§ of Section ?;j'''of-«.V.'fhe KarIata-ikzi I---I_i_<.g'i1 C(.)11i'i. AC1 I. 961 it eouid b-e::'see.irTi sub se,<%tiu1'; (2) of se.<'*':i<)n 2 dc-3fiI'i"ct:--.fcr5imiiIiCt~!_a13peciE-f, sub se<:E'.ioz'1 (3) clefixies j_/"if;-st (1;31.§L33ciZ"._aiI1c1 e'u.b"seefiQ"n..v(6)_ deñhes 'sc;-émn(1 c.zppea!'. .P'ir\$ti.appeal Vis._defiAi'z,ed""as "an V appeal wi'ii:'-£1. tI11{jf{Iv'-e"é-l~.I.'V'i'_" i2e'i=x?x7*"i'r:>nz}' b'em;§: in force, lies to {P1 e E lig}'1 (f3oi:1'i' 'decree or order, made by :3 .i.1_ '1:V.fAt1'V1e exercise of its 'originaf appeal is defined as "an a;5;Jee3-tii*a.a5f}'1:i<:1"iL' '1n_ "1"cie"1" any iajw for the time being in force, Iia*:<.:»< in iiu□i'"ijg§i1"£jE)'an'E {mm 21 judgment, decree or order.,pa1ss:s{;_5'cY_.}e>}L 4% S-.3'i'?.i)(i)(.1i§1"1é-Eli(7 civil (tour? in the exercise = of '&i.p))éi>{.E{zI{e' <.?iU-1'1 M,' E :I'is<'i' £5?! 10:2 ".

1 'E?':§1v1;';s;. i1 at-.]ea1' from file above definitions of 'cri'mi1'1.g-il' 2:ap;>£:rz--1.1.'. *fi;_*s€" éappezgzil 'c'El'i":d 'second appeal' as d.eefi.ne{§"i::"n..h'-a:' Sui'; ,':>'r;.*-:¢.§.ior1&~.; (2); {I3} (6) of Section 2 of . 'S K.' 'I{a;*:ia1;im. 5-mg: i:::<m;~: rm 2:35;. 1.1-my are so defined u ""with 2.1 'x.'§:"=,"a.-' ii; :_§i::s{i1_';'.<-_{11.issE': '<'rimi1a_1 appeais' from 'civil E1p]f)E'Ei}E\$. 'i'E":«f">z.;4:h £i':e1w__'» ia rm f''~;£:?'pé11'éi1'l(' , §fji'()ViSiOI'i in the Code mi" '{';'é::i§.z"mi P:'<_s<:<w;§:.zrx a Ei.E«;~ Ef~3e('*':.i(;>1'1 £00 in the ¢m©ww« Code of Civil Procedure, providing for "Second Appeal from an "order in appeal", passed by a Criminal Court in exercise of its appellate jurisdiction, subwseyciions (1)(b) & (2) (b) of Sec.3'78 Cl'.P.C. provide appeal against an order of acquittal, -, by any Court, other than the hi the cases instituted upon Police report. If»'i1i1'e.deiin;ition_'. of 'Criminal appeal' as defi11eVd=u'i1der 2E2) of the Karnataka High Court;..V:Act'l__';~V.isi'tal:en in restricted sense to mean only avn~--ap.peal- frv=orn.a1i'o,ider passed by a subordina'teViiCriri§i1'nall'~.Court.._"in exercise of its 'original criminal_jurisdibtiCon□gtlieé..-criminal appeals which are provided for_luVI1der"*.su|o~sections (1) (b) and 2 (b) of C'r.,P.Cl.H lw'c)'t:lld fall outside ihis definition and as sugcllc; be entertained by this Court.

18.' .v1A.:*'l'Aherei'ore, with great respect to the learned Singledudge of Cowordinate Bench of this Court. I am of C ""th'e~considered opinion that by virtue of the definition of "criminal appeal' found in Sec.2[2] of the Karnataka High Court. Act 196}, ii: can not be said that an appeal to the Higli Court. gig:-i1i1si an order oi' Et('1L.ill'l"E1l passed f"

2,3 H(Or1'bI(' ff3i.1;}.:'<'11'1<* ("Yc>u1"i §."1;1\$ (:Ei)s(?I'\-'@ (i in the case of Associateé ifemeni Co., Ltd., Vs Keshavancznd zféported in ILR 19§8 KA.R 185?' {C} 21;; 1tr1(i<)I':

"[c] éiriminal Procedure Code 3 Act N612 sf 1974) - Section»..386.'_ - vP6w4erS.o_:) f Appeiiaia Court ané (>3pufj;:ts_ PAowe'1--'s'._L_of__T f Revisicm.

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h'¢!.'~Z""",§E'<a"2'«_V "i_iéé{~*(,Of'1':-é"=* wolf 1'f{~L'tog1'1i7:€d in legai
[J'1A(,\\,-'§'§E:'i'i~%:-~iv'" _ Keraia vs. K.M. (Sharia Abdulla 8:

« MI'1'1{'\$'€' i:~; §'ii'''i <:s...~_~; < *z1§:§; _'i}' ('i§iS1iI"1{'3IiI()I'1 beiween an
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iii'%%=%*zi=ii< * < %s: iiiipiivét 5.1: f.l'1£: said two €:'. '§i.[']i"{'.'F%:-a&t?ii?.'. An

appeal is a continuation of the proceedings; in effect the entire proceedings
from